

portions shall be raised, while the term charged with them is still *reversionary*. But there are also other circumstances affecting the portionists *personally*, which have a material bearing upon the inquiry, at what time the portions are to be raised.

6. **Time of raising portions in special cases.**—If a specific sum be given to A., payable at her age of twenty-one, or day of marriage, the money cannot be raised until the interest has become vested; for should the fund on which the money raised is invested prove deficient, the portionist might still have recourse to the estate (*b*). And so where the trust of a term was to raise 3,000*l.* for younger children, payable at their respective ages of twenty-one years, or days of marriage, it was held that the trustees were not authorised, when one child had attained his age of twenty-one years, to raise the entire sum, for the infant children could not be deprived of the real security for their shares (*c*). But from the manifest convenience of raising the portions at once, it seems the Court will lean to that construction where anything appears upon the instrument to warrant such a course. Thus the trustees of a marriage settlement were directed, after the death of the husband, to levy and raise by mortgage, sale, or other disposition of the estate, if there should be more than three children, the sum of 10,000*l.* for their portions, the shares of the sons to be vested in, and payable to them at the age of twenty-one, and the shares of the daughters at twenty-one or marriage; and it was provided that *no mortgage should be made until some one of the portions should become payable*. Four of the children had attained *twenty-one and three were under age; and the [*418] Vice-Chancellor said, “In this settlement there is a clause that no mortgage is to be made until some one of the portions shall become payable. The whole 10,000*l.* must therefore be raised at once. It is objected that some of the shares may become diminished in amount: the answer to that is, that the Court considers the investment in the 3 per cent. Consols as equivalent to payment. If there is any rise

(*b*) *Dickinson v. Dickinson*, 3 B. C. C. 19.

(*c*) *Wynter v. Bold*, 1 S. & S. 507.